

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index #

Date of filing:

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E.R., an infant by his Mother and Natural Guardian, MARIA
D. HERNANDEZ and MARIA D. HERNANDEZ,
individually,

Plaintiffs designate New York
County as the place of trial

Plaintiffs,

Basis of the venue is the Locus
of Occurrence

-against-

SUMMONS

THE CITY OF NEW YORK, LIEUTENANT SAM RUSSO,
POLICE OFFICER KARIMA HOLMES, POLICE OFFICER
RUTH MATEO and JOHN AND JANE DOES-Police
Officers as yet unidentified,

Plaintiffs reside at
321 Throop Avenue, Apt. #2
Brooklyn, New York 11206

Defendants.

County of Kings

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

LIEUTENANT SAM RUSSO,
c/o New York City Police Department-
28th Precinct
2271-89 Frederick Douglass Boulevard
New York, New York 10027

POLICE OFFICER KARIMA HOLMES
c/o New York City Police Department-
28th Precinct
2271-89 Frederick Douglass Boulevard
New York, New York 10027

Defendant's address:

POLICE OFFICER RUTH MATEO
c/o New York City Police Department-
28th Precinct
2271-89 Frederick Douglass Boulevard
New York, New York 10027

Dated: Brooklyn, New York
January 3, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
 E.R., an infant by his Mother and Natural Guardian, MARIA
 D. HERNANDEZ and MARIA D. HERNANDEZ,
 individually,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, LIEUTENANT SAM RUSSO,
 POLICE OFFICER KARIMA HOLMES, POLICE OFFICER
 RUTH MATEO and JOHN AND JANE DOES-Police
 Officers as yet unidentified,

Defendants.

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Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
 defendants herein, upon information and belief, respectfully show to this Court, and allege as
 follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
 AND BATTERY ON BEHALF OF E.R., AN INFANT BY HIS MOTHER
AND NATURAL GUARDIAN, MARIA D. HERNANDEZ**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident
 of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK,
 was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
 State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known
 as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on March 24, 2017, and within the time prescribed by law, a
 sworn Notice of Claim stating, among other things, the time when and place where the injuries
 and damages were sustained, together with plaintiff's demands for adjustment or payment thereof,
 was served and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30)

days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on October 30, 2017, pursuant to the General Municipal Law, a Statutory 50-H hearing of the infant plaintiff, E.R., was held.

6. That on February 7, 2017, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed LIEUTENANT SAM RUSSO, POLICE OFFICER KARIMA HOLMES, POLICE OFFICER RUTH MATEO and JOHN AND JANE DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on February 7, 2017, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, E.R., was lawfully present in front of the premises known as 321 West 110th Street, County, City and State of New York.

8. That on February 7, 2017, and at all times hereinafter mentioned and upon information and belief, infant plaintiff, E.R., was assaulted and battered by defendants, LIEUTENANT SAM RUSSO, POLICE OFFICER KARIMA HOLMES, POLICE OFFICER RUTH MATEO and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

9. That on February 7, 2017, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on February 7, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, LIEUTENANT SAM RUSSO, POLICE OFFICER KARIMA HOLMES, POLICE OFFICER RUTH MATEO and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the infant plaintiff, E.R., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

11. That on February 7, 2017, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the infant plaintiff, E.R., was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, infant plaintiff, E.R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION OF E.R., AN INFANT BY HIS MOTHER
AND NATURAL GUARDIAN, MARIA D. HERNANDEZ**

14. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" - "13" herein, as though more fully set forth herein at length.

15. That defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the LIEUTENANT SAM RUSSO, POLICE OFFICER KARIMA HOLMES, POLICE OFFICER RUTH MATEO and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the infant plaintiff, E.R.

16. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, LIEUTENANT SAM RUSSO, POLICE OFFICER KARIMA HOLMES, POLICE OFFICER RUTH MATEO and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the infant plaintiff, E.R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST OF E.R., AN INFANT BY HIS MOTHER
AND NATURAL GUARDIAN, MARIA D. HERNANDEZ**

18. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" - "17" herein, as though more fully set forth herein at length.

19. That on February 7, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, LIEUTENANT SAMRUSSO, POLICE OFFICER KARIMA HOLMES, POLICE OFFICER RUTH MATEO and JOHN AND JANE DOES-Police Officers as yet unidentified. were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the infant plaintiff, E.R.,

20. That on February 7, 2017, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, infant plaintiff, E.R., sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

22. By the reason of the foregoing, infant plaintiff, E.R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS ON
BEHALF OF E.R., AN INFANT BY HIS MOTHER AND
NATURAL GUARDIAN, MARIA D. HERNANDEZ**

23. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" - "22" herein, as though more fully set forth herein at length.

24. That the defendant, THE CITY OF NEW YORK, including but not limited to LIEUTENANT SAM RUSSO, POLICE OFFICER KARIMA HOLMES, POLICE OFFICER RUTH MATEO and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

25. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the infant plaintiff, E.R.

26. That as a result of said intentional and negligent acts, infant plaintiff, E.R., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

27. By reason of the foregoing, the infant plaintiff, E.R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION
PURSUANT TO THE 42 U.S.C.A. SECTION 1983 OF E.R., AN INFANT BY
HIS MOTHER AND NATURAL GUARDIAN, MARIA D. HERNANDEZ**

28. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" - "27" herein, as though more fully set forth herein at length.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to LIEUTENANT SAM RUSSO, POLICE OFFICER KARIMA HOLMES, POLICE OFFICER RUTH MATEO and JOHN AND JANE DOES-Police Officers as yet unidentified, through policies, practices and customs, directly caused the constitutional violations suffered by the infant plaintiff, E.R.

30. That the defendant, THE CITY OF NEW YORK, including but not limited to LIEUTENANT SAM RUSSO, POLICE OFFICER KARIMA HOLMES, POLICE OFFICER RUTH MATEO and JOHN AND JANE DOES-Police Officers as yet unidentified, through its

police department, has had and still has hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

31. That the defendant, THE CITY OF NEW YORK, including but not limited to LIEUTENANT SAM RUSSO, POLICE OFFICER KARIMA HOLMES, POLICE OFFICER RUTH MATEO and JOHN AND JANE DOES-Police Officers as yet unidentified, through its police department, has a *de facto* quota police that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

32. That on February 7, 2017, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, including but not limited to LIEUTENANT SAM RUSSO, POLICE OFFICER KARIMA HOLMES, POLICE OFFICER RUTH MATEO and JOHN AND JANE DOES-Police Officers as yet unidentified, was aware that these individual defendants routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

33. That on February 7, 2017, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, including but not limited to LIEUTENANT SAM RUSSO, POLICE OFFICER KARIMA HOLMES, POLICE OFFICER RUTH MATEO and JOHN AND JANE DOES-Police Officers as yet unidentified, was aware that individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

34. By reason of the foregoing, the infant plaintiff, E.R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF E.R., AN INFANT BY HIS
MOTHER AND NATURAL GUARDIAN, MARIA D. HERNANDEZ**

35. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" - "34" herein, as though more fully set forth herein at length.

36. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

37. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to LIEUTENANT SAM RUSSO, POLICE OFFICER KARIMA HOLMES, POLICE OFFICER RUTH MATEO and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

38. By reason of the foregoing, the infant plaintiff, E.R., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF
OF MARIA D. HERNANDEZ, AS MOTHER AND NATURAL
GUARDIAN OF THE INFANT, E.R.**

39. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" - "38" herein, as though more fully set forth herein at length.

40. That at all times hereinafter mentioned, plaintiff, MARIA D. HERNANDEZ, was the Mother and Natural Guardian of the infant plaintiff, E.R., and as such said plaintiff, MARIA D. HERNANDEZ, was entitled to the society and services of said infant plaintiff, E.R.

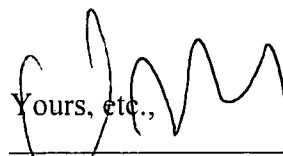
41. By reason of the defendants' aforementioned negligence, the plaintiff, MARIA D. HERNANDEZ, was deprived of the society and services of the infant plaintiff, E.R., and shall forever be deprived of said society and services.

42. As a result of herein above, plaintiff, MARIA D. HERNANDEZ, has expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for infant plaintiff, E.R.

43. That by reason of the foregoing negligence on the part of the defendants, the plaintiff, MARIA D. HERNANDEZ, has been damaged in a sum exceeding the jurisdictional limits of all lower Courts.

WHEREFORE, plaintiff, E.R., an infant by his Mother and Natural Guardian, MARIA D. HERNANDEZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, E.R., an infant by his Mother and Natural Guardian, MARIA D. HERNANDEZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, E.R., an infant by his Mother and Natural Guardian, MARIA D. HERNANDEZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, E.R., an infant by his Mother and Natural Guardian, MARIA D. HERNANDEZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, E.R., an infant by his Mother and Natural Guardian, MARIA D. HERNANDEZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, E.R., an infant by his Mother and Natural Guardian, MARIA D. HERNANDEZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, MARIA D. HERNANDEZ, Mother and Natural Guardian of the infant plaintiff, E.R., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Seventh** Cause of Action; together with attorneys' fees and the costs and disbursements of this action.

DATED: Brooklyn, New York
January 3, 2018

Yours, etc., 

ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 17ER02-07

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

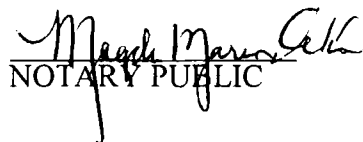
) SS:

COUNTY OF KINGS)

MARIA D. HERNANDEZ, Mother and Natural Guardian of the infant plaintiff,
ER, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that
deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is
true to deponent's own knowledge, except as to the matters therein stated to be alleged upon
information and belief, and that as to those matters deponent believes them to be true.


MARIA D. HERNANDEZ

Sworn to before me this 3rd
day of January, 2018


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-2019